UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WISCONSIN

JENNIFER OLSON, Plaintiff, v. MILK SPECIALTIES COMPANY d/b/a ACTUS NUTRITION, Defendant.	Case No. 3:26-cv-01012

COMPLAINT

I. NATURE OF THE CASE

1. Jennifer Olson began working at Actus Nutrition looking for a place where she could build a career. After her coworkers learned that she was married to a woman, they began treating her differently because she is a lesbian.

2. Olson did not make her sexual orientation a workplace issue. Her coworkers did. Jacob Schwalbach stopped treating Olson the way he had before learning about her wife. He became less willing to help her, more critical of her work, and at times refused to communicate with her directly. Then, on June 1, 2026, Schwalbach entered Olson's work area discussing an attempted burning of a Pride flag. He stated that he wished the person responsible had succeeded and said, in substance, "Fuck them LGBTQ." When Olson reminded him that she was standing right there, Schwalbach responded: "Oh yeah, that's right. You're one of them."

3. Olson tried to keep working. On June 7, Schwalbach again entered Olson's work area and announced, "Happy Dairy Month, everybody," while glaring at her. In light of his prior comments and the change in his treatment of her after learning that she had a wife, Olson believed the discriminatory conduct was continuing. She therefore documented what was happening at work and later provided an audio recording to Actus Human Resources.

4. Actus reviewed the recording and considered the matter serious enough to suspend Schwalbach and Timothy Skidmore without pay while corporate Human Resources investigated.

Actus advised Olson that termination was being considered. It later informed Olson that, after consulting corporate counsel, it would not rely upon portions of the recording and would return both employees to work.

5. By the time Actus returned Schwalbach and Skidmore to work, both men knew that Olson had reported them and had been warned against retaliation. Olson told Actus that she was afraid to return to work around the employees she had reported and asked what the company would do to protect her. Actus did not separate them from Olson. Instead, it permitted Olson to arrive and punch in several minutes early in an effort to avoid them during shift change. Olson nevertheless returned to work on June 19 and completed her shift without incident. She returned again for her next scheduled shift on June 21.

II. PARTIES

6. Plaintiff Jennifer Olson ("Olson") is an adult resident of Wisconsin. Beginning on April 20, 2026, Olson was employed by Defendant at its Actus Nutrition facility in Sparta, Wisconsin.

7. Defendant Milk Specialties Company d/b/a Actus Nutrition ("Actus") is a Foreign Business Corporation with its Principal Office located at 7500 Flying Cloud Drive Suite 500, Eden Prairie, MN 55344. Actus conducts business in Wisconsin and operates the facility located at 427 E. Wisconsin Street, Sparta, Wisconsin 54656.

8. At all times relevant to this action, Actus was Olson's employer and exercised control over the terms and conditions of her employment, including her job assignment, training, scheduling, workplace rules, discipline, Human Resources processes, leave and accommodation processes, and termination.

III. JURISDICTION, VENUE, AND ADMINISTRATIVE EXHAUSTION

9. This action arises under Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §§ 2000e et seq. This Court has subject-matter jurisdiction pursuant to 28 U.S.C. § 1331 and 42 U.S.C. § 2000e-5(f)(3).

10. Venue is proper in the United States District Court for the Western District of Wisconsin pursuant to 42 U.S.C. § 2000e-5(f)(3) because the unlawful employment practices occurred at Actus's Sparta, Wisconsin facility in Monroe County, Wisconsin.

11. On August 21, 2026, the EEOC issued Olson a Notice of Right to Sue.

12. Olson commenced this action within ninety days of receiving the Notice of Right to Sue and has satisfied the administrative prerequisites to bringing her Title VII claims.

IV. FACTUAL ALLEGATIONS

A. Olson Begins Work at Actus and Is Treated Differently After Coworkers Learn She Is Married to a Woman

13. Olson began working for Actus at its Sparta, Wisconsin facility on April 20, 2026.

14. Actus assigned Olson to train and work in the dryer area as a Production Operator. The position required her, as a new employee, to learn Actus's production equipment, operating procedures, monitoring requirements, sampling procedures, cleaning processes, and other plant practices from more experienced employees.

15. Before Schwalbach learned that Olson was married to a woman, he answered Olson's questions, assisted her when she needed help, and demonstrated work she was still learning.

16. In approximately mid-May 2026, during an ordinary workplace conversation about plans outside of work, Olson mentioned that she and her wife had plans together.

17. Schwalbach, Skidmore, and Scott were present. After coworkers asked what Olson meant by "wife," Olson explained that she was married to a woman, identified her wife as Selena, and showed them photographs of her.

18. After Schwalbach learned that Olson was married to a woman, his treatment of her changed.

19. Schwalbach became less willing to assist Olson with work she was still learning.

20. Schwalbach became increasingly impatient when Olson asked questions and increasingly critical of her work.

21. Schwalbach began telling Olson that tasks were "her job," questioning why she needed help, directing her to consult her notes, and suggesting that she should already know how to perform work she had been learning for only approximately one month.

22. Schwalbach also began avoiding direct communication with Olson. On occasions when Olson was standing nearby within earshot, Schwalbach would direct Scott to relay work instructions to Olson rather than speak to Olson himself, including telling Scott, in substance, to "tell her" what needed to be done.

B. Schwalbach Makes His Anti-LGBTQ Hostility Explicit and Olson Reports the Discrimination to Actus

23. On June 1, 2026, Olson was working in the dryer operator room with Skidmore and Folkema when Schwalbach entered and raised a news report concerning an individual in Appleton, Wisconsin, who had attempted to burn a Pride flag.

24. Schwalbach stated, in substance, that he wished the individual had succeeded and "Fuck them LGBTQ."

25. Olson responded by reminding Schwalbach that she was standing directly in front of him, stating words to the effect of, "Hello, I'm right here."

26. Schwalbach responded, "Oh yeah, that's right. You're one of them."

27. Schwalbach also contrasted Pride Month with Wisconsin's recognition of Dairy Month, stating in substance that it was "Dairy Month," not LGBTQ month.

28. On June 7, 2026, Olson was again working in the dryer area when Schwalbach entered and announced, "Happy Dairy Month, everybody," while glaring at Olson.

29. Olson understood Schwalbach's comments as communicating that recognition of LGBTQ persons was illegitimate or objectionable and that Schwalbach's hostility toward LGBTQ people included Olson personally.

30. Later that day, Olson reported the matter to Actus supervisor Alan Zin.

31. Zin told Olson that he would contact Stephanie Armstrong in Human Resources concerning her complaint.

32. Olson also contacted Armstrong directly that evening and provided Actus with an audio recording documenting the workplace conduct about which she was complaining.

33. Armstrong reviewed the recording and thereafter informed Olson that the matter needed to be escalated within Actus.

34. By the evening of June 7, Actus had actual notice that Olson was reporting discriminatory workplace conduct based upon her sexual orientation.

35. Corporate Human Resources thereafter interviewed Olson concerning the June 1 incident, the change in Schwalbach's treatment of her, and the circumstances that caused Olson to believe she was being discriminated against.

36. Actus suspended Schwalbach and Skidmore without pay while it investigated Olson's complaint.

C. Actus Returns Schwalbach and Skidmore to Work, and the Workplace Harassment Escalates into a Violent Threat

37. On June 15, 2026, corporate Human Resources informed Olson that Schwalbach and Skidmore would be returned to work.

38. Actus told Olson that, after consulting corporate counsel, it had concluded that it could not rely upon portions of the recording because Olson had left the room while the recording continued.

39. Actus further told Olson that terminating Schwalbach and Skidmore based upon the recording could expose Actus to grievances or wrongful-termination challenges through the employees' union.

40. Actus nevertheless knew independently that Olson had personally heard and reported Schwalbach's June 1 remarks, including his hostility toward LGBTQ people and his statement identifying Olson as "one of them."

41. By June 15, Schwalbach and Skidmore knew that Olson had reported their conduct and that her complaint had resulted in their suspension from work.

42. After Actus informed Olson that Schwalbach and Skidmore would return, Olson asked corporate Human Resources what Actus intended to do to protect her and permit her to work safely.

43. Corporate Human Resources told Olson, in substance, that there was little or nothing further Actus could do.

44. Actus did not provide a plan that separated Schwalbach or Skidmore from Olson within the facility.

45. Actus permitted Olson to arrive and punch in at approximately 5:45 p.m. for her 6:00 p.m. shift in an effort to avoid encountering Schwalbach during shift change.

46. That measure did not separate Schwalbach or Skidmore from Olson within the facility or restrict their access to the areas where Olson worked.

47. Olson nevertheless returned to work on June 19 and completed her shift without incident.

48. Schwalbach and Skidmore were not working Olson's shift on June 19.

49. On June 21, 2026, Olson returned to Actus for her next scheduled shift.

50. Olson arrived at approximately 5:45 p.m., obtained her work uniform, and entered the women's locker room to prepare for work.

51. Olson had an assigned blue metal locker in the women's locker room. Her name was displayed on the outside of the locker, identifying it as hers.

52. Olson opened her assigned locker and discovered a message written in black marker on the inside of the locker door.

53. The message stated, as written: "Your done Dike" and "Snitchs get stit."

54. Olson understood "Dike" to be a misspelled use of the anti-lesbian slur "dyke," and understood "Snitchs get stit" to mean "snitches get stitches."

55. Olson immediately photographed the message, reported it to Human Resources and Actus plant management, and left the facility. At Actus's direction, she went directly to the Sparta Police Department and reported the threat.

56. Within minutes of Olson discovering the message, Actus therefore knew that the employee who had recently reported anti-LGBTQ discrimination had returned to work and found an anti-lesbian and retaliatory threat inside her assigned locker.

57. On July 23, 2026, Olson expressly notified Actus that she remained subject to a continuous doctor-ordered medical restriction and requested the paperwork necessary to pursue short-term disability benefits. Five days later, on July 28, Actus terminated her employment.

58. Actus stated that it terminated Olson because information from her healthcare provider indicated that she could not perform the Production Operator position, with or without accommodation, because remote work was not feasible, and because Actus could no longer continue holding her position open.

59. On August 11, Voya subsequently approved Olson's short-term-disability benefits beginning July 23 and approved non-FMLA medical leave from July 23 through August 21, 2026. The approved leave period therefore included July 28, the date Actus terminated Olson's employment.

60. Actus's treatment of the employees implicated in Olson's discrimination complaint also forms part of the circumstances surrounding the discharge. Actus initially suspended Schwalbach and Skidmore, but ultimately returned them to work after advising Olson that terminating them could expose Actus to grievances or wrongful-termination challenges through the Union.

61. Olson does not allege that Schwalbach or Skidmore were similarly situated comparators for every purpose. Their treatment is nevertheless relevant to the overall circumstances because Actus elected to preserve their employment after Olson's discrimination complaint, while approximately five weeks after the discriminatory workplace hostility escalated into the locker threat, Actus terminated Olson.

62. The circumstances surrounding Olson's discharge include the change in her treatment after her sexual orientation became known; express anti-LGBTQ hostility directed at her; Actus's actual knowledge of that hostility; the failure of Actus's initial response to prevent further discriminatory conduct; the subsequent violent anti-lesbian threat; Actus's knowledge that the threat precipitated Olson's inability to return; Olson's continuing efforts to preserve her employment; Actus's treatment of the employees implicated in her complaint; the timing of her termination; and Actus's subsequent defense of that termination. Considering those circumstances as a whole, Olson alleges that her sex and sexual orientation were a motivating factor in the decision to discharge her.

63. Actus thereby discriminated against Olson because of sex, including sexual orientation, with respect to her discharge in violation of 42 U.S.C. §§ 2000e-2(a)(1) and 2000e-2(m).

64. As a direct result of Actus's unlawful discriminatory discharge, Olson suffered lost wages and employment benefits, loss of employment, emotional pain and suffering, mental anguish, inconvenience, humiliation, and other damages recoverable under Title VII.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Jennifer Olson respectfully requests that the Court enter judgment in her favor and against Defendant Milk Specialties Company d/b/a Actus Nutrition and award the following relief:

A. Declare that Defendant subjected Plaintiff to unlawful discrimination, a hostile work environment, retaliation, and discriminatory and retaliatory discharge in violation of Title VII;

B. Award Plaintiff all back pay, lost wages, lost benefits, and other employment compensation she would have received but for Defendant's unlawful conduct, together with prejudgment interest;

C. Order Plaintiff's reinstatement to an appropriate position with restored seniority, compensation, and benefits, or, if reinstatement is not feasible or appropriate, award Plaintiff front pay in lieu of reinstatement;

D. Award Plaintiff compensatory damages as permitted by 42 U.S.C. § 1981a, including damages for emotional pain and suffering, inconvenience, mental anguish, humiliation, and other pecuniary and nonpecuniary losses caused by Defendant's unlawful conduct;

E. Award punitive damages pursuant to 42 U.S.C. § 1981a(b)(1) upon proof that Defendant engaged in unlawful discrimination or retaliation with malice or reckless indifference to Plaintiff's federally protected rights;

F. Award such equitable and injunctive relief as the Court determines necessary and appropriate to remedy Defendant's violations of Title VII and prevent further discrimination and retaliation;

JURY DEMAND

Plaintiff demands a trial by jury on all claims and issues so triable.

Dated: October 8, 2026
Respectfully submitted,
Eau Claire Legal, LLC

/s/ David Carlson
Attorney David Carlson
405 S. Farwell St. #6,
Eau Claire, WI 54701
(715) 495-7445
david@eauclaire.legal
WI SBN: 1138342

/s/ Joshua Wilson
Attorney Joshua Wilson
125 TownPark Drive, STE #300
Kennesaw, Georgia, 30144
(888) 867-5291
Ga Bar Number 551969
Wi Bar Number 1135903
josh@eauclaire.legal
Attorneys for Plaintiff